[CONSTITUTION

Proclamation 3 of 2021

PROCLAMATION

by

HIS EXCELLENCY THE HONOURABLE EMMERSON DAMBUDZO MNANGAGWA G.C.Z.M, President of Zimbabwe and Commander -in-Chief of the Defence Forces of Zimbabwe.

WHEREAS section 187(1) of the Constitution of Zimbabwe, 2013, provides that a judge may be removed from office only for inability to perform the functions of his or her office, due to mental or physical incapacity, gross incompetence or gross misconduct;

AND WHEREAS section 187(3) of the Constitution of Zimbabwe provides that if the Judicial Service Commission advises the President that the question of removing a judge from office ought to be investigated, the President must appoint a tribunal to inquire into the matter;

AND WHEREAS the President issued a Proclamation in Statutory Instrument 261B of 2020, establishing the Tribunal to inquire into the question of removal from office of Honourable Ms Justice Erica Fungai Ndewere;

AND WHEREAS certain amendments to the period of hearing of the inquiry are necessary:

NOW THEREFORE, under and by virtue of the powers vested in the President as afore-said, I do hereby, by this proclamation amend Proclamation 7 of 2020, published in Statutory Instrument 261B of 2020, by the insertion in paragraph (d) of "with an option of an extension of six months" after "swearing in of members".

Given under the hand and the Public Seal of Zimbabwe at Harare this 25th day of February, in the year of our Lord two thousand and twenty-one.

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E. D. MNANGAGWA,
President.

By Command of the President.

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